

Student AI Transparency and Human Review Act

Model legislative memo for state lawmakers, staff, school boards, and civic partners.

Core principle

No student should face a major educational consequence from an AI-influenced decision without notice, explanation, and meaningful human review.

This memo outlines a narrow, practical model state bill for K-12 public schools. The proposal does not ban AI in schools. It focuses on public disclosure, student data safeguards, appeal rights, and human review before serious consequences.

Problem

Schools are adopting AI-enabled tools faster than many students and families can understand them. In many districts, basic public information is difficult to find: what tools are used, whether student data is processed, whether AI can influence high-impact decisions, and whether a human review process exists.

The K-12 AI Transparency Index tracks public AI transparency signals across 1,913 districts in all 50 states. The index identifies transparency gaps. The coalition turns that evidence into action.

Policy Goal

The Student AI Transparency and Human Review Act would require public school districts to provide basic public information about AI-enabled systems used in schools, protect student data, and ensure meaningful human review before serious AI-influenced consequences.

Key Provisions

Provision	What it would do
Public AI Tools Registry	Districts publish a public registry of AI-enabled tools, including vendor name, purpose, users, whether student data is processed, and whether the tool may influence high-impact decisions.
Disclosure of High-Impact Uses	Districts disclose whether AI is used in grading, discipline, counseling, monitoring, surveillance, special education, academic placement, misconduct detection, or other high-impact contexts.
Notice to Students and Families	Students and families receive clear notice when AI-enabled tools are used in contexts that may materially affect a student.
Human Review	AI may not be the sole basis for suspension, expulsion, grade penalties, academic placement changes, disciplinary records, special education decisions, or comparable serious consequences.
Appeal Process	Students and families may request explanation, correction of inaccurate data, human review, and reconsideration of AI-influenced decisions.
Student Data Protections	Student data processed by AI tools may not be sold, used for

Vendor Contract Transparency	unrelated advertising, or used for secondary model training unless explicitly permitted by law and district policy.
Annual District Reports	Contracts with AI-enabled vendors must address data collection, retention, deletion, model training, security, auditability, and limits on use.
Implementation Timeline	Districts publish annual AI transparency reports summarizing tools used, purposes, high-impact uses, complaints, appeals, vendor changes, and policy updates.
	Districts receive a reasonable implementation period, such as 12 months, to publish registries, update policies, and review vendor terms.

Why This Is Narrow and Practical

- It does not ban AI in schools.
- It focuses on transparency, not broad technology control.
- It gives districts time to comply.
- It protects students in high-impact contexts without stopping teachers from using AI responsibly.
- It helps school boards, parents, and students ask clear questions about tools, data, and human review.

Who This Helps

Students

Students gain notice, explanation, and human review when AI affects serious educational outcomes.

Teachers

Educators receive clearer district guidance instead of vague or inconsistent expectations.

District administrators

Districts receive a clear checklist for public disclosure and vendor review.

Parents and guardians

Families can see what AI tools are used and how student data is handled.

School boards

Boards gain a practical governance framework for AI oversight.

State lawmakers

Lawmakers can address AI in schools through a focused, student-centered transparency bill.

Recommended First Steps for a Legislative Office

1. Review the model bill framework with education, privacy, and technology staff.
2. Ask the state education department how districts currently disclose AI-enabled tools.
3. Meet with students, parents, school boards, district administrators, and data privacy experts.
4. Convert the model provisions into state-specific bill language.
5. Begin with transparency, human review, and student data protections as the core bill package.

Contact

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